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Case Number: 25STCV14589 Hearing Date: July 17, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

STEPHEN M. UTHOFF and ANTOINETTE UTHOFF

Plaintiffs,

v.

ARKEMA, INC., et al.,

Defendants.

Case No. 25STCV14589

Hearing Date: July 17, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

HENRY COMPANY LLC'S MOTION FOR SUMMARY JUDGMENT
OR, IN THE ALTERNATIVE, ADJUDICATION

I.

Background

On May 15, 2025, Plaintiffs Stephen and Antoinette Uthoff filed their complaint for personal injury alleging Mr. Uthoff developed mesothelioma from indirect occupational exposure to asbestos and asbestos containing products from his father's work as a mechanic from 1965 to 1968, direct non-occupational exposure from his work with automotive products from 1970 to 1983, direct occupational exposure from his own work as a mechanic in 1981 and 1982, and direct non-occupational exposure to asbestos containing home repair products from 1972 to 1983 and from his personal use of talc products between 1991 and 2020.

On April 23, 2026, Defendant Henry Company, LLC ("Henry") moved for summary judgment or adjudication on the grounds that Plaintiffs lack and cannot reasonably obtain evidence to support their claim that Mr. Uthoff was exposed to an asbestos-containing product for which it is responsible.

On June 26, 2026, Plaintiffs opposed, arguing summary judgment should be denied because Henry failed to shift its burden on summary judgment. Plaintiffs also argue that triable issues of material fact remain over whether Mr. Uthoff was exposed to Henry's asbestos-containing roofing cement.

On July 6, 2026, Henry replied, arguing Plaintiffs' evidence fails to raise a triable issue of material fact.

Henry fails to meet its initial burden to prove that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Uthoff was exposed to an asbestos-containing product for which it is responsible. The

motion for summary judgment is denied.

Henry also failed to meet its initial burden on summary adjudication as to the cause of action for fraudulent concealment and the demand for punitive damages. The motions for summary adjudication to the cause of action for fraudulent concealment and the demand for punitive damages are denied.

Henry met its initial burden to prove that Plaintiffs lack and cannot reasonably obtain evidence to support the cause of action for false representation. Plaintiffs failed to present affirmative evidence supporting this cause of action. The motion for summary adjudication of this cause of action is granted.

Henry to give notice.

II.

Evidentiary Objections

Henry's Objections

Sustained:

2. Henry

objects to the prior deposition testimony of another corporate representative, Paul Beemer Jr., taken in Sarah Ludeman, et al. v. ACANDS, Inc., et al., Los Angeles County Superior Court Case No. BC239199, on April 8, 2002. This testimony is inadmissible hearsay. Plaintiffs fail to identify a valid hearsay exception to support the admissibility of this prior testimony. Plaintiffs fail to rebut the general rule against the admissibility of former deposition testimony. (*Berroteran v. Superior Court* (2022) 12 Cal.5th 867, 895 ["The party urging admission of deposition testimony bears the burden of rebutting the general rule by submitting appropriate information justifying the admission of designated deposition testimony."].) Plaintiffs offer no evidence or argument to support the admissibility of this deposition and do not address whether this deposition was intended to serve as a trial preservation transcript, whether a subsequent agreement was made to use the deposition as trial testimony, or that any of the *Berroteran* factors bear in favor of the admissibility of the deposition.

3. OSHA

Webpage on Asbestos, as of June 19, 2026. Henry objects to this exhibit on the grounds that it is hearsay, irrelevant, and unduly prejudicial. The exhibit is hearsay because it contains out of court statements made on the OSHA website used to prove the truth of the website's contents about the dangers of asbestos exposure.

Overruled:

1. Henry objects to the deposition of Ariel Lender taken in Walter Nielsen and Arlene Nielsen v. Borg-Warner Morse Tec Inc., et al. Plaintiffs represent that Henry "agreed to waive hearsay objections to this transcript at trial." (Seitz Decl., Exh. 4.) Henry fails to address Mr. Seitz's declaration in its objection to this transcript. The objection is overruled.

3. Material Data Safety

Sheet Dated November 27, 1995 (Technical Review) and January 1, 1999 (Preparation/Revision). Henry objects to this exhibit on the grounds that it is irrelevant. Henry argues that the exhibit pertains to Henry 204 roofing mastic which was not identified by Mr. Uthoff in his deposition. However, Mr. Uthoff did identify this product in his answers to standard interrogatories. The exhibit is therefore relevant to whether Henry knew of the health hazards posed by its asbestos-containing products. The objection is overruled.

III.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must "conclusively negate[] a necessary element of the plaintiff's case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial." (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing "that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) "The defendant may, but need not, present evidence that conclusively negates an

element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (Id. at p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff's factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In asbestos litigation, a plaintiff is required to show causation. A plaintiff must show “some threshold exposure to the defendant's defective asbestos-containing products” and must further establish in “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) “[T]he proper analysis is to ask whether the plaintiff has proven exposure to a defendant's product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor.” (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416.)

Where a plaintiff's allegations pertain to asbestos as an intended ingredient of a product the plaintiff was exposed to occupationally, the plaintiff is required to present evidence “defendant's product was definitely at his work site and that it was sufficiently prevalent to warrant an inference that plaintiff was exposed to it...” (Turley v. Familian Corp. (2017) 18 Cal.App.5th 969, 980 [Citing Lineaweaver, supra, 31 Cal.App.4th at p. 1420.]) ¿Where a defendant manufactures similar products, some of which contained asbestos and some of which did not, a plaintiff must present evidence from which the court can reasonably infer that it was more likely than not that the plaintiff was exposed to an asbestos-containing variety of the defendant's product. (See Collin

v. CalPortland Co. (2014) 228 Cal.App.4th 582, 593.)

a. Parties'
Arguments

Henry

moves for summary adjudication on the grounds that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Uthoff was exposed to an asbestos-containing product for which it is responsible. Specifically, Henry argues that Plaintiffs' discovery responses are devoid of facts supporting their claims against Henry. (Motion at pp.8-9 ["There is simply no evidence in this case to suggest that Mr. Uthoff was exposed to an asbestos-containing product manufactured and sold by Henry, and to conclude otherwise would impermissibly require speculation. As such, Henry has clearly met its initial burden of production on summary judgment and shifted the burden to Plaintiffs. However, since there is no way for Plaintiffs to establish that Mr. Uthoff was exposed to an asbestos-containing Henry product, Plaintiffs will be unable to produce 'substantial responsive evidence sufficient to establish a triable issue of material fact on the merits of [Henry's] showing' as required to defeat summary judgment in this case."].)

In

opposition, Plaintiffs argue that Henry failed to meet its moving burden because Plaintiffs' discovery responses contained "detailed evidence regarding Mr. Uthoff's exposure to Henry's asbestos-containing roofing cement." (Opp. at p.11.) Plaintiffs also argue that triable issues of material fact remain regarding Mr. Uthoff's exposure to Henry's asbestos-containing roofing cement. (Id. at pp.11-12 ["Mr. Uthoff testified about his work with Henry roof cement on a regular basis for at least two years in the early 1980s, and periodically throughout the 1990s. Mr. Uthoff remembered the weights and color of the cans as well as the consistency and color of Henry's asbestos-containing roof cement, which made up more than 75% of their sales volume for roofing cement products during the pertinent years. Accordingly, it is more likely than not that Mr. Uthoff was exposed to asbestos from Henry asbestos-containing roofing products."].)

In

reply, Henry argues Plaintiffs' evidence is insufficient to raise a triable issue of material fact because Mr. Uthoff could not recall which Henry product he worked with and because Henry made non-asbestos containing products that

were packaged in the same manner as the asbestos-containing versions of their products. (Reply at pp.4-5.)

b. Analysis

Defendant's

Burden: Factually Devoid

Henry

moves for summary judgment on the grounds that Plaintiffs lack and cannot reasonably obtain evidence to support their claim that Mr. Uthoff was exposed to an asbestos-containing product for which it is responsible.

Henry

alleges Plaintiffs' discovery responses are devoid of facts supporting their claims against it. Henry presents Plaintiffs' responses to standard interrogatories wherein Plaintiffs represent that Mr. Uthoff handled roof cement which was dark in color and in packaging that said "Henry" and "204." (Henry's Evidence, Exh. A at p.12.) The responses also state Mr. Uthoff used the cement on remodel and maintenance projects between 1972 and 1983. (Id., at p.12.) These responses were verified on August 13, 2025. (Id. at p.14.) When Henry asked Plaintiffs to state "all facts that support the First Cause of Action (Strict Liability)," Plaintiffs responded in their amended responses to special interrogatories which Mr. Uthoff verified on March 20, 2026 by referring to the response to special interrogatory 1, which asked that Plaintiffs identify witnesses who observed Mr. Uthoff working with any product Plaintiffs contend was manufactured by Henry. (Id., Exh. D at pp.2-11.) The response to special interrogatory number 1 states in relevant part:

"Plaintiff Stephen

M. Uthoff ("Mr. Uthoff" or "Plaintiff") developed malignant mesothelioma as a result of exposure to asbestos from approximately 1972 through 1983 through home and rental property remodel and maintenance. Plaintiffs believe and therefore allege Mr. Uthoff's exposure resulted from his use of Henry roof cement products for which Defendant HENRY COMPANY LLC is responsible.

...

His work included

the application of roof cement, and cleaning up and removing the resulting

dried product. The product was dark in color with a thick, wet consistency. The packaging said "Henry" and "204."

Mr. Uthoff

testified that he first observed his father working with Henry's roofing product when he was as young as eight, nine, or ten years old (See Stephen Uthoff deposition pg. 538). He testified that the Henry roof product came in blue-colored cans that were typically gallon-sized with smaller quart sizes also available, with the word "Henry's" on the can (Id. 543-544). Mr. Uthoff recalled the Henry's roof product itself was black in color and had a thick, wet, tar-like consistency. (Id. 69, 546).

...

When the old

Henry's was really dry and caked, scraping it off would create visible dust and debris (Id. 70, 551-552). Each annual repair session took less than two hours, possibly less than an hour. (Id. 556). Mr. Uthoff testified he did this work on a pretty much annual basis from when he was about 13 or 14 until he left home in 1982. (Id. 549). He never wore a mask when he used the Henry's roofing material. (Id. 556.)

...

Plaintiffs claim

Defendant's products are defectively designed in that the products released respirable asbestos fibers when used or misused in a way that was reasonably foreseeable to defendant. Defendant designed their products to incorporate and/or operate with asbestos or asbestos-containing materials and the design of Defendant's products required Mr. Uthoff or others in his vicinity to disturb asbestos or asbestos-containing materials, causing the release of respirable asbestos fibers which Mr. Uthoff breathed. Ordinary users of Defendant's products, including Mr. Uthoff, did not reasonably expect that use of Defendant's products would result in serious bodily injury. At the time, Mr. Uthoff and others in his immediate vicinity used Defendant's products, the products were in substantially the same condition as when they left Defendant's possession, or any changes made to the product were reasonably foreseeable to Defendant."

(Henry's

Exhibits, Exh. E at pp.3-9.)

Mr.

Uthoff testified at his October 1, 2025 deposition that he recalls working with Henry products for his roofing work. (Henry's Exhibits, Exh. G at 68:22-22-69.)

Mr. Uthoff knew the cement was a Henry product because it said "Henry's" on the product packaging. (Id. at 70:9-10.) Mr. Uthoff also used Henry products

to seal leaks. (Id. at 142:8-17.) Mr. Uthoff recalls that the cement

came in a quart or gallon-sized, blue-colored cans bearing the word "Henry's."

(Id. at 542:19-543:23 ["Q:...And how did the Henry product come packaged?

A: It was like a paint can type of thing. Q: Do you recall the size of the can

or the weight or? A: I remember two different sizes. It would have similar

sizes to paint, so like the larger size would be more like a gallon size. And

then I do recall there would be a smaller size as well, more like a quart size...Q:

And how did you know that the product you were using was a Henry product, as

opposed to some other brand? A: It said Henry's on it. Q: Do you recall any

other specific writing on the can other than Henry's?...A: It would have said,

you know, the brand. It would have said what it would be. It would have a

weight. It would have, you know, other writing on it, but as we sit here today,

what I remember is, you know, the word Henry's. And my recollection is that, at

least at some point in time, those would be blue-colored cans as well."].) Mr.

Uthoff recalled that the can of cement also bore the name of the product but

could not recall the products he used. (Id. at 545:9-22 ["Q: Okay. Do

you recall—so I know you said that it would kind of say on there what—what the

product would be. Do you recall if it was—if it was identified by any

particular name or type of product that was actually on the can itself?...A: It

would have the name, but as I sit here today, I couldn't tell you what that

name was."].) Mr. Uthoff could not recall the product numbers on the cans and

did not recall seeing the word "asbestos" on the cans. (Id. at 546:3-16

["Q: Okay. And do you recall any...product numbers on the cans? A: No, I do not.

But there were numbers, you know, and other things on the can. So it would have

been identifiable, but as I sit here today, I couldn't tell you what those

numbers were. Q:...Do you recall having—seeing the word asbestos on the cans? A:

I do not recall seeing the word asbestos. There was writing on there, but...I

don't recall one way or the other what those writings were. But I don't have a

specific memory as to the word asbestos."].) Mr. Uthoff did not remember where the

cement he worked with came from but speculated that in the 90s, he may have

purchased it from Home Depot or Lowe's. (Id. at 569:21-6 ["Q: And then

do you—do you recall where you purchased the Henry's from when—that you used in

the '90s? A: I do not. By then, Home depot was around, so that would be my

guess, either a Home Depot or a Lowe's because that's where, you know, we purchase basically, you know, home improvement things. Q: Do you happen to know where the...Henry's product was purchased that was used back on your family home? A: No."].)

Henry

also submits the prior deposition testimony of a corporate representative, Ariel Lender, from another matter. (Henry's Evidence, Exh. H.) This testimony indicates that beginning in the early 1980s, Henry started to substitute a non-asbestos version of its roofing cement in addition to the asbestos version, which were products 204 and 208. Mr. Lender testified that Henry 204 is a plastic roof cement that came packaged in half gallons, five gallons, and 50 gallon metal buckets. (Id. at 89:21-90:4.) Henry 208 was also plastic roof cement that was marketed to be applied on wet surfaces. (Id. at 96:8-24.) Henry 208 was packaged in quart, gallon, three and a half gallon, and five gallon metal buckets. (Id. at 97:4-8.) Henry also made Henry 504 and 508 products as non-asbestos cements analogous to Henry 204 and 208 respectively. (Id. at 123:3-11 ["Q: ...you mentioned additional roofing cements that were non-asbestos-containing manufactured by Henry from 1981 to 2004. Can you identify those products for us. A: Yes. That would be 504 was the non-asbestos analogous product to 204; 508 was the non-asbestos analogous product to 208;..."].) Mr. Lender testified that it made a non-asbestos version of Henry 204 because it had difficulties purchasing asbestos. (Id. at 127:9-20 ["Q...Why did Henry create a non-asbestos version of the 204 in the 1980s? A: Well, as I said, there was potential issues with supply, and we wanted to have the ability to alternate products in the event that the asbestos supply ran dry so we had business protection on a – functionally equivalent product. Q: You say 'potential issues with supply' in the 1980s? A: Yes. At times, there was some difficulty purchasing asbestos."].) The non-asbestos products were packaged in the same packaging as the asbestos-containing products. (Id. at 125:20-126:1 ["Q:...how is the 504 packaged? A: In metal containers; same containers that the asbestos-bearing products are packaged, same type of containers. Q: 508 packaging was what? A: Quarts—or gallons; five gallon pails predominantly."].)

Henry

fails to meet its initial burden to show that Plaintiffs lack and cannot reasonably obtain evidence to support their contention that Mr. Uthoff was exposed to an asbestos-containing product for which it was responsible. Because Henry contends it made both asbestos-containing and non-asbestos-containing versions of the product at issue, Plaintiffs' discovery were required to set

forth facts from which the court can reasonably infer that it was more likely than not that the plaintiff was exposed to an asbestos-containing variety of the defendant's product. (See Collin, supra, 228 Cal.App.4th at p.593.) This motion turns on whether there is evidence that Mr. Uthoff was exposed to an asbestos-containing version of Henry roofing cement.

Henry

argues that Mr. Uthoff's discovery responses identifying Henry 204 as the product that exposed him to asbestos were contradicted by his deposition testimony. (Motion at p.8 ["Although Plaintiffs' responses to discovery alleged that Mr. Uthoff worked with Henry 204 roof cement, Mr. Uthoff, as the only product identification witness in this case, testified under oath during his deposition that he did not know the name of the Henry roofing product or the product number for the Henry roofing product he worked with or around."].) Mr. Uthoff first represented in his August 13, 2025 responses to standard interrogatories that the cans of Henry roofing cement he used in his roofing work bore the name "Henry" and "204." (Henry's Exhibits, Exh. A at p.12.) Later, at his October 1, 2025 deposition, Mr. Uthoff testified that he did not remember the product numbers on the roofing cement cans he used to perform roofing work. (Henry's Exhibits, Exh. G at 546:6-9 ["... there were numbers, you know, and other things on the can. So it would have been identifiable, but as I sit here today, I couldn't tell you what those numbers were."].) Later, in March 2026, Mr. Uthoff served amended special interrogatory responses again representing that the roofing cement "packaging said 'Henry' and '204.'" (Id., Exh. E at p.3.) In other words, Mr. Uthoff first represented that he saw Henry 204 on the roofing cement packaging, then testified that he could not remember which product numbers were on the packaging, and finally represented again that he saw Henry 204.

Henry

fails to explain why the discrepancy in Mr. Uthoff's discovery responses supports an inference that Mr. Uthoff lacks and cannot reasonably obtain evidence to support his claims against it. The rule articulated in *D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1 comes into play when a party makes statements in a declaration opposing summary judgment that contradicts earlier discovery responses or deposition testimony. When a party's admission "is obtained not in the normal course of human activities and affairs but in the context of an established pretrial procedure whose purpose is to elicit facts," this admission "is entitled to and should receive a kind of deference not normally accorded evidentiary allegations in affidavits." (*D'Amico*,

supra, 11 Cal.3d at p.23.) In other words, a party may not create an issue of fact on summary judgment by a declaration that contradicts prior deposition testimony unless the contradiction is explained. (Preach v. Monter Rainbow (1993) 12 Cal.App.4th 1441, 1451 ["In determining whether any triable issue of material fact exists, the trial court may, in its discretion, give great weight to admissions made in deposition and disregard contradictory and self-serving affidavits of the party."]; see also Niederer v. Ferreira (1987) 189 Cal.App.3d 1485, 1502.) However, where the facts are reversed and a party submits a declaration and thereafter states contradictory information in a later deposition, D'Amico does not apply because such a declaration does not contradict any prior discovery admissions. (Turley, supra, 18 Cal.App.5th at p.982.)

Here, the timing of Mr. Uthoff's statements is important. Mr. Uthoff's interrogatory responses are equivalent to a declaration because he signed and verified the responses. (Henry's Exhibits, Exh. A at p.12.) Because Mr. Uthoff's deposition testimony contradicting his original interrogatory responses came after the interrogatory response, the D'Amico rule does not apply. Although Mr. Uthoff thereafter served amended responses, Mr. Uthoff's statement that the roofing cement cans bore "Henry 204" on them remained unchanged from his original interrogatory responses and thus pre-date Mr. Uthoff's deposition testimony. Because the D'Amico rule does not apply, the court may not disregard either Mr. Uthoff's deposition testimony or his interrogatory responses. The court may not weigh this evidence to determine which version of Mr. Uthoff's representations is the truth or determine the credibility of his discovery responses. (See Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840.) Whether Mr. Uthoff saw the number "204" on the product packaging is a dispute of fact which may not be resolved on summary judgment.

Additionally, Mr. Uthoff's discovery responses are not devoid of facts to support Plaintiffs' claims against Henry. As discussed, Mr. Uthoff's interrogatory responses state that he saw the number 204 on the roofing cement packaging. There is no dispute that Henry 204 contained asbestos during the relevant time period. Even if there was such a dispute, Henry admits that Henry 204 contained asbestos by presenting Mr. Lender's testimony. Mr. Lender's testimony that Henry made a non-asbestos version of Henry 204 due to difficulties with asbestos supply shows that Henry 204 was an asbestos-containing version of its roofing cement.

(Henry's Exhibits, Exh. H at 127:9-20.) Mr. Uthoff's discovery responses identifying Henry 204 as the asbestos-containing product that exposed him to asbestos thus contain sufficient facts to support their claims against Henry.

Plaintiffs'

discovery responses contain sufficient facts to support their claim that Mr. Uthoff was exposed to an asbestos-containing product for which Henry was responsible. Accordingly, Henry fails to meet its initial burden on summary judgment. The burden does not shift to Plaintiffs.

C.

False Representation

a. Legal
Standard

False

representation under Restatement of Torts section 402B establishes "liability for injuries caused by justifiable reliance on false advertising." (Westlye v. Look Sports, Inc. (1993) 17 Cal.App.4th 1715, 1750.) Under this section " '[o]ne engaged in the business of selling chattels who, by advertising, labels, or otherwise, makes to the public a misrepresentation of a material fact concerning the character or quality of a chattel sold by him is subject to liability for physical harm to a consumer of the chattel caused by justifiable reliance upon the misrepresentation, even though [¶] (a) it is not made fraudulently or negligently, and [¶] (b) the consumer has not bought the chattel from or entered into any contractual relation with the seller.' [Citation.]" (Id. at pp. 1750-1751.) "The rule 'is one of strict liability for physical harm to the consumer, resulting from a misrepresentation of the character or quality of the chattel sold, even though the misrepresentation is an innocent one, and not made fraudulently or negligently.' [Citation.]" (Hauter v. Zogarts (1975) 14 Cal.3d 104, 114.) Under section 402-B, the "reliance need not necessarily be that of the consumer who is injured. It may be that of the ultimate purchaser of the chattel . . . who because of such reliance passes it on to the consumer who is in fact injured, but is ignorant of the misrepresentation.' [Citation.]" (Westlye, supra, 17 Cal.App.4th at p. 1751.)

b. Parties'

Arguments

Henry

argues that Plaintiffs lack and cannot reasonably obtain evidence that it made any affirmative misrepresentation to Mr. Uthoff. (Motion at pp.13-14 [“Mr. Uthoff testified that he never spoke with any representatives of Henry and he did not receive written communications from Henry. UMF Nos. 22-23. Consequently, there is no evidence whatsoever that Henry misrepresented a material fact or that Mr. Uthoff relied upon any such false representation, and Henry is entitled to summary adjudication as to Plaintiffs’ third cause of action for false representation as a result.”].)

In

opposition, Plaintiffs argue that Henry failed to shift its burden on summary adjudication as to the causes of action for false representation and fraudulent concealment because they presented triable issues of material fact as to these causes of action. (Opp. at p.13 [“Defendant manufactured asbestos-containing Henry 204 roofing cement, knew the hazards of asbestos, and refused to disclose the hazardous ingredient to end-users like Mr. Uthoff, who as a result, were unknowingly exposed to asbestos. There is sufficient evidence for a jury to reasonably conclude that Henry falsely represented its product to Mr. Uthoff and consumers like him.”].)

In

reply, Henry reiterates arguments from its moving papers. (Reply at p.10.)

c. Analysis

Defendant’s Burden:

Factually Devoid

Henry

meets its initial burden to prove that Plaintiffs lack and cannot reasonably obtain evidence to support their cause of action for false representation. Henry argues that Plaintiffs failed to proffer evidence to establish that it made misrepresentations to Mr. Uthoff. When Henry asked Mr. Uthoff to state details about the alleged misrepresentation in its standard interrogatories, Mr. Uthoff responded in relevant part:

“Plaintiff is informed and believes

that the manufacturers and suppliers of asbestos containing friction products expressly and impliedly represented to members of the general public, including the purchasers and users of said product, and other "exposed persons," including Plaintiff, that asbestos and asbestos-containing products were of merchantable quality and safe for the use for which they were intended. Plaintiff is informed and believes that these representations by the manufacturers and suppliers were false and untrue, and manufacturers and suppliers knew at the time they were untrue, in that the asbestos and asbestos-containing products were not safe for their intended use, nor were they of merchantable quality as represented by the manufacturers and suppliers in that asbestos and asbestos-containing products have very dangerous properties and defects whereby said products cause asbestosis, other lung damage, and cancer, and have other defects that cause injury and damage to the users of said products and other "exposed persons," thereby threatening the health and life of said persons, including Plaintiff. In approximately 1968, ROGER UTHOFF became an officer of the California Highway Patrol. However, he continued to work on his own, his family's, his friends', and his neighbors' cars, and taught Plaintiff how to work on cars from an early age. When Plaintiff became a teenager, he was able to work independently on cars.

Upon information and belief, since on or before 1930, the manufacturers and suppliers of asbestos containing friction products have known and have possessed the true facts of medical and scientific data and other knowledge that clearly indicated the hazards of asbestos-containing products. Such manufacturers and suppliers failed to label any of the asbestos-containing products regarding the hazards of such materials and products to the health and safety of Plaintiff and others in Plaintiff's position working in close proximity with such materials. By not labeling such materials as to their said hazards, the manufacturers suggested as a fact to Plaintiff that it was safe for Plaintiff to work in close proximity to such materials, when in fact this was not true. The manufacturers suppressed information relating to the danger of use of the aforementioned materials by requesting the suppression of information to Plaintiff and the general public concerning the dangerous nature of the aforementioned materials to workers, by not allowing such information to be disseminated in a manner which would have given general notice to the public and knowledge of the hazardous nature thereof."

(Henry's Exhibits, Exh. B at pp.26-27.)

Mr. Uthoff testified

at his deposition that he had seen written communications from Henry on marketing and packaging materials but had never received oral communications from a representative of Henry. (Henry's Exhibits, Exh. B at 570:7-21 ["Q...Other than...using the Henry products...and maybe the packaging or any of the marketing materials that may have come with the product that you used, have you had any oral or written communications with a representatives of Henry Company, LLC? A: Just those...marketing and packaging materials...but as I sit here today, I do not have the name of somebody that I...talked to at Henry's LLC."].)

Plaintiffs'

discovery responses are devoid of facts supporting their cause of action for false representation. Plaintiffs' interrogatory responses state at most that Henry was aware of the hazards posed by its asbestos-containing products and failed to issue warnings about those products. (Henry's Exhibits, Exh. B at pp.26-27.)

Mr. Uthoff also testified that he had never orally communicated with Henry. Although Mr. Uthoff alleges he saw Henry's marketing and packaging, there is no evidence in the record of what the alleged misrepresentations were or that they were made on Henry's packaging or marketing materials. Plaintiffs' discovery responses are therefore devoid of facts supporting the cause of action for false representation and support an inference that Plaintiffs lack and cannot reasonably obtain evidence to support this cause of action against Henry. Accordingly, Henry meets its burden on summary adjudication. The burden shifts to Plaintiffs.

Plaintiff's Burden

Plaintiffs

fail to meet their burden on summary adjudication to present affirmative evidence to support their cause of action for fraudulent concealment. Plaintiffs argue that Henry knew the hazards of asbestos and refused to disclose these hazards to end users. (Opp. at p.13.) However, it is well settled that a cause of action for false representation requires a misrepresentation of material fact. Plaintiffs fail to present evidence that Henry either misrepresented its products or only partially disclosed information about the safety of its products. Accordingly, Plaintiffs fail to meet their burden on summary adjudication. Henry's motion for summary adjudication is granted as to the cause of action for false representation.

D.

Fraudulent Concealment

a. Legal
Standard

The elements

of a cause of action for fraudulent concealment or fraud

by non-disclosure are: “(1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as they did if they had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage.” (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311, citing Kaldenbach v. Mutual of Omaha Life Ins. Co. (2009) 178 Cal.App.4th 830, 850.)

Element two,

sometimes referred to as the special relationship requirement, means that there are four circumstances which can give rise to actionable fraud

by non-disclosure or concealment: “ ‘(1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]’ ” (LiMandri v. Judkins (1997) 52

Cal.App.4th 326, 336.) In the absence of a fiduciary relationship between a plaintiff and a defendant, “As a matter of common sense, such a relationship can only come into being as a result of some sort of transaction between the parties.” (Id. at p. 337.) Unlike products liability, where there is a “general principle that a manufacturer has a duty to warn consumers of a product’s hazards and faults,” a duty to disclose material facts arises in the fraud context “only where there is already a sufficient relationship or transaction between the parties.” (Bigler-Engler, *supra*, 7 Cal.App.5th at p.312.)

b. Parties’
Arguments

Henry argues that

Plaintiffs lack and cannot reasonably obtain evidence that a direct

transactional relationship existed between Mr. Uthoff and Henry giving rise to a duty to disclose. (Motion at p.8 ["Plaintiffs allege that Mr. Uthoff worked with and around asbestos-containing Henry roofing cement; however, there is no evidence that he obtained any asbestos-containing products directly from Henry. Indeed, Mr. Uthoff testified that he never had any oral or written communications with Henry, he didn't know where his father purchased the Henry product they used on the family home when he was young, and Mr. Uthoff didn't recall where he purchased the Henry product he used in the 1990s (but he guessed it was purchased from Home Depot or Lowe's). UMF Nos. 20-22. Accordingly, there is no evidence whatsoever of any relationship or transaction between Henry and Mr. Uthoff, let alone a fiduciary or confidential relationship which would give rise to a duty to disclose for purposes of Plaintiffs' fraudulent concealment claim."].)

In opposition, Plaintiffs make the same arguments they made for the cause of action for false representation. (Opp. at p.13.)

In reply, Henry reiterates arguments from its moving papers. (Reply at p.10.)

c. Analysis

Defendant's Burden:

Factually Devoid

Henry

fails to meet its initial burden to prove that Plaintiffs lack and cannot reasonably obtain evidence to support the cause of action for fraudulent concealment. Although Henry argues that there is no evidence that a transactional relationship existed between Mr. Uthoff and Henry, none of Henry's standard interrogatories or special interrogatories asked Plaintiffs about the facts supporting their cause of action for fraudulent concealment.

In

Weber v. John Crane, Inc., the Court of Appeal discussed the evidence a defendant must provide to meet its burden of proving a plaintiff did not have or could not reasonably obtain evidence to support his claims. (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1442.) For example, in Andrews v. Foster Wheeler LLC, the defendant there met its burden on summary

judgment by submitting “the plaintiff’s deposition testimony that he had no knowledge whether he had been exposed to one of the defendant’s asbestos-containing products” and “the plaintiffs’ nonresponsive answers to comprehensive special interrogatories designed to elicit information about the plaintiffs’ exposure to the defendant’s products.” (Weber, supra, 143 Cal.App.4th at p. 1440, citing *Andrews v. Foster Wheeler LLC* (2006) 138 Cal.App.4th 96, 104-107.) In contrast, the defendant in *Scheiding v. Dinwiddie Construction Co.* “attempted to meet its burden of persuasion by the simple device of asking no questions at all and then arguing that the burden shifted to the plaintiff because the record contained no evidence that the plaintiff had been exposed to the defendant’s product.” (Weber, supra, 143 Cal.App.4th at p. 1439, citing *Scheiding v. Dinwiddie Construction Co.* (1999) 69 Cal.App.4th 64, 67.) The court in *Scheiding* held that while a defendant’s summary judgment motion may be supported by factually devoid discovery responses from which an absence of evidence of evidence can be inferred, the court could not infer an absence of evidence where the deposition and interrogatories contained no questions aimed specifically at the presence or absence of the defendant at jobsites. (Id.) The court in *Weber* concluded that the defendant there, John Crane, failed to meet its burden on summary judgment because it “did not support its motion with evidence that plaintiffs failed to provide meaningful responses to comprehensive interrogatories designed to elicit all the evidence plaintiffs had to support their contention of liability” or that “after extensive discovery, plaintiffs asserted they had no additional information.” (Id.) At most, the evidence John Crane advanced in support of its motion showed the plaintiff did not know of John Crane’s products or how they looked and could not recall working with any John Crane product. (Id.)

Here, Henry’s interrogatories failed to ask Plaintiffs about the cause of action for intentional tort/intentional failure to warn/concealment. (See Henry’s Exhibits, Exhs. B, E.) Although there is a request for production requesting documents supporting the cause of action, a request for production is not designed to elicit facts about a plaintiff’s claims because it merely seeks identification of documents. (See Henry’s Exhibits, Exh. F.) Unlike *Scheiding*, where a defendant served comprehensive discovery designed to elicit all evidence the plaintiffs had to support their claims against the defendant, the discovery Henry conducted here is not comprehensive. There are no discovery requests asking Plaintiffs to set forth the facts supporting the cause of action for fraudulent concealment. Henry did ask Mr. Uthoff at his deposition whether he

recalled where he purchased the Henry products he used. (Henry's Exhibits, Exh. G at 569:21-570:6.) However, a transactional relationship can be inferred from evidence other than direct dealings, such as whether a manufacturer directly advertised its products to consumers such as the plaintiff and whether the manufacturer derived any direct monetary benefit from the transaction. (Bader v. Johnson & Johnson (2022) 86 Cal.App.5th 1094, 1132.) Henry's questions at Mr. Uthoff's deposition were not comprehensive because they only concerned whether Mr. Uthoff had direct dealings with Henry. The facts here are closer to those in Weber, where a defendant failed to support its motion for summary judgment with evidence that the plaintiffs could not provide meaningful responses to comprehensive interrogatories.

It is unreasonable to infer from Henry's evidence that Plaintiffs cannot reasonably obtain evidence to support their claims against Henry. Accordingly, Henry fails to meet its burden on summary adjudication. The burden does not shift to Plaintiff. The motion for summary adjudication of the cause of action for fraudulent concealment is denied.

i.
Punitive Damages

When a motion for summary adjudication targets a request for punitive damages, a higher standard of proof is at play. "Although the clear and convincing evidentiary standard is a stringent one, 'it does not impose on a plaintiff the obligation to "prove" a case for punitive damages at summary judgment [or summary adjudication.]' [Citations.] Even so, 'where the plaintiff's ultimate burden of proof will be by clear and convincing evidence, the higher standard of proof must be taken into account in ruling on a motion for summary judgment or summary adjudication, since if a plaintiff is to prevail on a claim for punitive damages, it will be necessary that the evidence presented meet the higher evidentiary standard.' [Citation.]" (Butte Fire Cases (2018) 24 Cal.App.5th 1150, 1158-1159.) For a corporate defendant, the oppression, fraud or malice "must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code, § 3294, subd. (b).) That requirement can be satisfied " 'if the evidence permits a clear and convincing inference that within the corporate hierarchy authorized persons acted despicably in "willful and conscious disregard of the rights or safety of others." ' [Citation.]" (Morgan v. J-M Manufacturing

Company, Inc. (2021) 60 Cal.App.5th 1078, 1090 (“Morgan”).) A plaintiff also “can satisfy the ‘managing agent’ requirement ‘through evidence showing the information in the possession of the corporation and the structure of management decision making that permits an inference that the information in fact moved upward to a point where corporate policy was formulated.’ [Citation.]” (Id. at p. 1091.)

“
‘[I]ntentionally marketing a defective product knowing that it might cause injury and death is ‘highly reprehensible.’ [Citation.]” (Bankhead v. ArvinMeritor, Inc. (2012) 205 Cal.App.4th 68, 85.) Punitive damages may be available when a defendant knows the dangers of asbestos, took action to protect its own employees from the hazard, knew that its products were likely to pose a danger to users, and did not warn them. (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1300.) Such evidence “was sufficient to show malice, that is, despicable conduct coupled with conscious disregard for the safety of others.” (Id. at pp. 1300-1301.)

ii.

Defendant’s Burden: Factually Devoid

Henry

moves for summary adjudication of the demand for punitive damages on the grounds that Plaintiff lacks and cannot reasonably obtain evidence establishing by clear and convincing evidence that Henry acted with malice, fraud, or oppression. (Motion at p. 11.) However, the motion for summary adjudication was denied as to the cause of action for fraudulent concealment. Because a cause of action for fraud remains, a triable issue of fact remains over whether Henry engaged in fraudulent conduct which would support a demand for punitive damages. The motion for summary adjudication of the demand for punitive damages is denied.

IV.

Conclusion

Henry fails to meet its initial burden to prove that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Uthoff was exposed to an asbestos-containing product for which it is responsible. The motion for summary judgment is denied.

Henry also failed to meet its initial burden on summary adjudication as to the cause of action for fraudulent concealment and the demand for punitive damages. The motions for summary adjudication to the cause of action for fraudulent concealment and the demand for punitive damages are denied.

Henry met its initial burden to prove that Plaintiffs lack and cannot reasonably obtain evidence to support the cause of action for false representation. Plaintiffs failed to present affirmative evidence supporting this cause of action. The motion for summary adjudication of the false representation cause of action is granted.

Plaintiffs to give notice.

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SUPERIOR COURT OF THE STATE OF
CALIFORNIA,)

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14,)

)

STEPHEN M. UTHOFF and ANTOINETTE UTHOFF,)

Plaintiffs,)

v.)

)

ARKEMA, INC., et al.,)

)

Defendants.)

Case No. 25STCV14589

๖๖๖๖

Hearing Date: July 17, 2026

Time:

9:00 a.m.

๖ [TENTATIVE] ORDER

RE:๖

PNEUMO ABEX, LLC'S MOTION FOR SUMMARY
ADJUDICATION

I.

Background

On May 15, 2025, Plaintiffs Stephen and Antoinette Uthoff filed their complaint for personal injury alleging Mr. Uthoff developed mesothelioma from indirect occupational exposure to asbestos and asbestos containing products from his father's work as a mechanic from 1965 to 1968, direct non-occupational exposure from his work with automotive products from 1970 to 1983, direct occupational exposure from his own work as a mechanic in 1981 and 1982, and direct non-occupational exposure to asbestos containing home repair products from 1972 to 1983 and from his personal use of talc products between 1991 and 2020. As against Defendant Pneumo Abex, LLC, Plaintiffs allege Mr. Uthoff was exposed to asbestos-containing brakes.

On April 23, 2026, Pneumo Abex moved for summary adjudication of the cause of action for false representation and the cause of action for intentional tort/intentional failure to warn/concealment (hereinafter "fraudulent concealment") on the grounds that Plaintiffs lack and cannot reasonably obtain evidence to support these claims.

On June 26, 2026, Plaintiffs opposed, arguing that Pneumo Abex failed to shift its burden on summary adjudication because Plaintiffs' evidence is sufficient to raise a triable issue as to the fraud-based causes of action and the demand for

punitive damages.

On July 6, 2026, Pneumo Abex replied, reiterating that Plaintiffs' discovery responses are devoid of facts supporting the causes of action for false representation and fraudulent concealment.

Pneumo Abex meets its burden to prove that Plaintiffs lack and cannot reasonably obtain evidence to support their claims for false representation and fraudulent concealment. Plaintiffs fail to present evidence to support these causes of action. Accordingly, the motions for summary adjudication are granted as to these causes of action.

II.

Evidentiary Objections

Pneumo Abex's Objections

Sustained

1. Pneumo Abex

objects to the video deposition of Byron Frantz, a former employee of Genuine Parts Company. This testimony is inadmissible hearsay. Plaintiffs fail to identify a valid hearsay exception to support the admissibility of this prior testimony. Plaintiffs fail to rebut the general rule against the admissibility of former deposition testimony. (*Berroteran v. Superior Court* (2022) 12 Cal.5th 867, 895 ["The party urging admission of deposition testimony bears the burden of rebutting the general rule by submitting appropriate information justifying the admission of designated deposition testimony."].) Plaintiffs offer no evidence or argument to support the admissibility of this deposition and do not address whether this deposition was intended to serve as a trial preservation transcript, whether a subsequent agreement was made to use the deposition as trial testimony, or that any of the *Berroteran* factors bear in favor of the admissibility of the deposition. The objection is sustained.

2-3. These objections are sustained for the same reasons as objection number 1.

Not relied upon

4-11. These exhibits consist of Pneumo Abex's prior interrogatory responses and various guidelines, reports, and articles about the health risks posed by asbestos exposure. Plaintiffs present them to show that Pneumo Abex knew its products were hazardous. (PUMF No. 7.) This evidence fails to support Plaintiffs' causes of action for false representation and fraudulent concealment and is therefore immaterial to the court's analysis.

III.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must "conclusively negate[] a necessary element of the plaintiff's case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial." (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing "that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing." (Id. at p. 855.) " 'If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff's factually devoid discovery responses.' " (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

False Representation

i.

Legal Standard

False

representation under Restatement of Torts section 402B establishes “liability for injuries caused by justifiable reliance on false advertising.” (Westlye v. Look Sports, Inc. (1993) 17 Cal.App.4th 1715, 1750.) Under this section “ ‘[o]ne engaged in the business of selling chattels who, by advertising, labels, or otherwise, makes to the public a misrepresentation of a material fact concerning the character or quality of a chattel sold by him is subject to liability for physical harm to a consumer of the chattel caused by justifiable reliance upon the misrepresentation, even though [¶] (a) it is not made fraudulently or negligently, and [¶] (b) the consumer has not bought the chattel from or entered into any contractual relation with the seller.’ [Citation.]” (Id. at pp. 1750-1751.) “The rule ‘is one of strict liability for physical harm to the consumer, resulting from a misrepresentation of the character or quality of the chattel sold, even though the misrepresentation is an innocent one, and not made fraudulently or negligently.’ [Citation.]” (Hauter v. Zogarts (1975) 14 Cal.3d 104, 114.) Under section 402-B, the “‘reliance need not necessarily be that of the consumer who is injured. It may be that of the ultimate purchaser of the chattel . . . who because of such reliance passes it on to the consumer who is in fact injured, but is ignorant of the misrepresentation.’ [Citation.]” (Westlye, supra, 17 Cal.App.4th at p. 1751.)

ii.

Parties’ Arguments

Pneumo

Abex argues that Plaintiffs lack and cannot reasonably obtain that Pneumo Abex made any affirmative misrepresentation to Mr. Uthoff. (Motion at p.2 [“In the instant action, Plaintiffs’ theory against Abex, and all defendants, is that they misrepresented the safety of their products by failing to include a warning about the possibility of asbestos in their products. As such, any actionable fraud is premised on the non-disclosure of information rather than any affirmative misrepresentation of fact. Plaintiffs present no specific facts or documents setting forth any affirmative misrepresentation made by Abex, including through advertising.”].)

In

opposition, Plaintiffs argue that Pneumo Abex failed to shift its burden on

summary judgment because it failed to present evidence that it made no representations about the character or quality of its asbestos-containing products. (Opp. at p.9.) Plaintiffs also argue that a misleading partial disclosure is also actionable. (Id.) Plaintiffs also argue that Mr. Uthoff's lack of recollection of the Pneumo Abex name is not fatal to this cause of action. (Id.)

In reply, Pneumo Abex reiterates that a cause of action for false representation requires an affirmative misrepresentation. (Reply at p.6.) Pneumo Abex also argues that Plaintiffs' opposition improperly relies on speculation and inadmissible evidence. (Id.)

iii.

Analysis

Defendant's Burden:

Factually Devoid

Pneumo

Abex meets its initial burden to prove that Plaintiffs lack and cannot reasonably obtain evidence to support their cause of action for false representation. Pneumo Abex argues that Plaintiffs failed to proffer evidence to establish that it made misrepresentations to Mr. Uthoff or that Mr. Uthoff relied on any misrepresentation. When Pneumo Abex asked Mr. Uthoff to "all facts, including all EVIDENCE, supporting [Plaintiffs'] cause of action for False Representation Under Restatement of Torts Section 402-B," Plaintiffs responded by referring to their response to special interrogatory number 1, which requested all facts supporting Plaintiffs' contention that Mr. Uthoff was exposed to asbestos by an asbestos-containing product supplied by Pneumo Abex. (Parkins Decl., Exh. E at p.11.) The response to interrogatory number 1 states in relevant part:

"Plaintiff believes and therefore alleges that he was exposed to asbestos from his use of Defendants' asbestos-containing products from approximately 1965 through 1968 through the automotive work of his father, ROGER UTHOFF; from approximately 1972 through 1983 through his own automotive work.

From his birth in 1965 until 1968, Plaintiff's father ROGER UTHOFF worked as a professional mechanic at a Signal Service Station in San Pedro California, and as the owner of a Shell service station, on Pacific

Avenue in, San Pedro, California. He worked with brakes, which caused him to get asbestos dust on his clothing, which he wore home, exposing Plaintiff.

In approximately 1968, ROGER UTHOFF became an officer of the California Highway Patrol. However, he continued to work on his own, his family's, his friends', and his neighbors' cars, and taught Plaintiff how to work on cars from an early age. When Plaintiff became a teenager, he was able to work independently on cars.

From approximately August 1981 to October 1982, Plaintiff worked at Joe & Mike's automotive shop located at 2010 S. Pacific Avenue in San Pedro. His duties at the shop included assisting mechanics as they performed repairs as well as cleaning up the service bays and property at the end of the work day. The work that he assisted and cleaned up after included brake, gasket, and engine work.

A brake job included removing the existing brakes, and cleaning the drum of dust by banging on brake drums with a hammer to loosen caked on dust, and blowing air into the drums and the brake assembly. The new brake's friction material would be roughed up with sandpaper. Sanding the brake caused respirable dust, which he breathed. At commercial locations, the brakes' friction material would be ground with a brake grinder before installation and compressed air was used to blow out brake drums and brake assemblies. During and at the end of each work day at Joe & Mike's plaintiff was responsible for sweeping and disposing of all dust and debris that had accumulated during the work day including brake dust, debris and used parts. The use of the brake grinder, blowing brake dust, and cleaning up the resulting dust caused asbestos dust in the air, which he breathed.

...

Defendant had a duty to manufacture, distribute, sell and/or market products that were free from latent or other known or knowable defects prior to its products leaving its possession and control, or, alternatively, to clearly warn end users of the hazards of such products so that such end users and bystanders to such use could take proper precautions to make the use of such products safe. Despite its knowledge, defendant continued to manufacture, distribute, market, sell and/or supply its products known to release respirable asbestos-laden dust either when being installed, removed, cut, scraped, punched, ground, sanded, handled and

otherwise disturbed before, during and after use or when the products deteriorated. These defects existed at the time Defendants' asbestos-containing products left its possession and control. Further, defendant failed to warn users of the health hazards of asbestos in its products, or to provide any instructions regarding safe use. As a result, Plaintiff used and otherwise disturbed Defendant's asbestos-containing products in the manner described above without any taking any precautionary measures. These exposures increased Plaintiff's risk of contracting asbestosis. Defendant acted with malice, fraud and oppression, subjecting plaintiff and others like him, to cruel and unjust hardships in conscious disregard for their rights and safety. Despite its knowledge of the extraordinary health hazards associated with asbestos exposure from its products, defendant withheld safety information from end users and consumers and continued to manufacture, distribute, market, label, sell and/or supply such products, without warnings or proper handling instructions, for decades after such knowledge was first known by it..."

(Parkins Decl., Exh. E at pp.4-8.)

Mr. Uthoff

also testified at his deposition that he had never heard of Pneumo Abex. (Parkins Decl., Exh. J at 508:7-13.)

Plaintiffs'

discovery responses are devoid of facts supporting their cause of action for false representation. Plaintiffs' interrogatory responses state at most that Pneumo Abex was aware of the hazards posed by its asbestos-containing products and failed to issue warnings about those products. (Parkins Decl., Exh. E at pp.4-8.)

Mr. Uthoff also testified that he had never heard of Pneumo Abex and thus would have no knowledge of whether Pneumo Abex had ever made misrepresentations to him about the safety of its products either directly or through advertising. Plaintiffs' discovery responses are therefore devoid of facts supporting the cause of action for false representation and support an inference that Plaintiffs lack and cannot reasonably obtain evidence to support this cause of action against Pneumo Abex. Accordingly, Pneumo Abex meets its burden on summary adjudication. The burden shifts to Plaintiffs.

Plaintiff's Burden

Plaintiffs

fail to meet their burden on summary adjudication to present affirmative

evidence to support their cause of action for fraudulent concealment. The court sustained Pneumo Abex's objections to Plaintiffs' exhibits 1-3. Exhibits 5-12 consist of Pneumo Abex's prior interrogatory responses and various guidelines, reports, and articles about the health risks posed by asbestos exposure that are irrelevant to whether Pneumo Abex made misrepresentations to Mr. Uthoff. Plaintiffs present additional testimony from Mr. Uthoff's deposition where he provides details about his work with brakes and describes how the work created dust which he inhaled. (Healy Decl., Exh. 4 at pp.34-46, 59-61, 436, 452-453, 460-465, 495-496, 508-511, Exh. B.)

Plaintiffs' evidence fails to establish that Pneumo Abex made misrepresentations about the safety of its products. Plaintiffs' evidence consists largely of background information about Mr. Uthoff's alleged exposure through automotive repair work. (Healy Decl., Exh. 4.) Plaintiffs' remaining evidence was either inadmissible or irrelevant to whether Pneumo Abex made misrepresentations to Mr. Uthoff. Plaintiffs thus fail to present affirmative evidence that Pneumo Abex made misrepresentations to Mr. Uthoff about the safety of its products. Accordingly, Plaintiffs fail to meet their burden on summary adjudication. The motion for summary adjudication is granted as to the cause of action for false representation.

C.

Fraudulent Concealment

i.

Legal Standard

The elements

of a cause of action for fraudulent concealment or fraud by non-disclosure are: "(1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as they did if they had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage." (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311, citing Kaldenbach v. Mutual of Omaha Life Ins. Co. (2009) 178 Cal.App.4th 830, 850.)

Element two,

sometimes referred to as the special relationship requirement, means that there are four circumstances which can give rise to actionable fraud by non-disclosure or concealment: “ (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]’ ” (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336.) In the absence of a fiduciary relationship between a plaintiff and a defendant, “As a matter of common sense, such a relationship can only come into being as a result of some sort of transaction between the parties.” (Id. at p. 337.) Unlike products liability, where there is a “general principle that a manufacturer has a duty to warn consumers of a product’s hazards and faults,” a duty to disclose material facts arises in the fraud context “only where there is already a sufficient relationship or transaction between the parties.” (Bigler-Engler, supra, 7 Cal.App.5th at p.312.)

ii.

Parties’ Arguments

Pneumo Abex argues that Plaintiffs lack and cannot reasonably obtain evidence that a direct transactional relationship existed between Mr. Uthoff and Pneumo Abex giving rise to a duty to disclose. (Motion at p.8 [“As in Bigler, Hoffman and LiMandri, Plaintiff’s Intentional Tort claim is factually unsupported and should be dismissed. Plaintiffs do not allege, nor have they offered any evidence of a ‘fiduciary’ or ‘confidential’ relationship between Mr. Uthoff and Abex. Plaintiffs produced no evidence of a transaction or other relationship with Abex in response to specific discovery requests...To provide factually rich discovery responses, Plaintiffs were required to present evidence of a special relationship between Abex and Mr. Uthoff. Plaintiffs failed to present specific facts showing that there was a fiduciary relationship between Abex and Mr. Uthoff or that there was a transaction between Abex and Mr. Uthoff, as opposed to the public at large, sufficient to give rise to a special relationship. There is no evidence that Mr. Uthoff directly purchased the brakes from Abex, that Abex was directly involved in retail sales or marketing of their product towards Mr. Uthoff, or any of the other factors discussed in Bader...In sum, Plaintiffs cannot provide sufficient specific facts to show the existence of a special relationship between Abex and Mr. Uthoff.”].)

In opposition, Plaintiffs

argue that a direct sale to Mr. Uthoff was not required to create a duty to disclose. (Opp. at p.11 [“The Bader case is on point. (Bader v. Johnson & Johnson (2022) 86 Cal.App.5th 1094, 1132.) J&J makes and sells baby powder to consumers through drug stores, grocery stores, and other retailers. Stores like CVS and Vons are certainly not agents of J&J. But these intermediaries do not disrupt the “transactional relationship” between a manufacturer and a consumer. As a result, J&J could be held liable for concealing material information about its baby powder from end users. Like J&J in Bader, Abex undoubtedly forms a transactional relationship with buyers, such as Plaintiff and his father, through retail sales of its products to consumers, and profits from those sales. Thus, strict privity in the sale is not required, and Abex’s motion for summary adjudication on this point must be denied.”].)

In reply, Pneumo Abex

argues that Plaintiffs’ opposition “does not identify admissible evidence of a relationship between Abex and Mr. Uthoff sufficient to impose a fraud-based duty to disclose. Plaintiffs argue that no direct sale is required and that a duty may extend through the distribution chain. But Plaintiffs still must present evidence establishing facts giving rise to a duty by Abex to Mr. Uthoff. They have not done so.” (Reply at p.7.)

iii.

Analysis

Defendant’s Burden:

Factually Devoid

Pneumo

Abex meets its initial burden to prove that Plaintiffs lack and cannot reasonably obtain evidence to support their cause of action for fraudulent concealment. Pneumo Abex argues that Plaintiffs lack and cannot reasonably obtain evidence that a transactional relationship existed giving rise to a duty to disclose. When Pneumo Abex asked Plaintiffs to “set forth all facts, including all EVIDENCE, supporting [Plaintiffs’] cause of action for Intentional Tort/Intentional Failure to Warn/Concealment,” Plaintiffs responded by referring to their response to interrogatory number 1, stated above. (Parkins Decl., Exh. E at p.11.) The responses at most state that Pneumo Abex had “a duty to manufacture, distribute, sell and/or market products that were free from latent or other

known or knowable defects prior to its products leaving its possession and control, or, alternatively, to clearly warn end users of the hazards of such products so that such end users and bystanders to such use could take proper precautions to make the use of such products safe.” (Id. at p.7.)

Plaintiffs fail to state the factual basis for their contention that Pneumo Abex owed Mr. Uthoff a duty to disclose. The interrogatory responses are devoid of facts demonstrating that the requisite transactional relationship existed between Mr. Uthoff and Pneumo Abex giving rise to a duty to disclose. The responses therefore give rise to an inference that Plaintiffs lack and cannot reasonably obtain evidence to support this cause of action. Accordingly, Pneumo Abex meets its burden on summary adjudication. The burden shifts to Plaintiffs.

Plaintiff's Burden

Plaintiffs cite Bader v. Johnson

& Johnson (2022) 86 Cal.App.5th 1094, 1132 to argue that a direct sale to Mr. Uthoff was not required to establish that Pneumo Abex had a duty of disclosure. The court in Bader explained that a transactional relationship could be inferred from evidence other than direct dealings, such as whether a manufacturer directly advertised its products to consumers such as the plaintiff and whether the manufacturer derived any direct monetary benefit from the transaction. Here, Plaintiffs' discovery responses were devoid of facts establishing whether any Mr. Uthoff directly transacted with Pneumo Abex. The responses likewise contain no facts showing whether Pneumo Abex advertised directly to consumers like Mr. Uthoff or whether it derived direct monetary benefit from Mr. Uthoff purchasing Pneumo Abex's products. As discussed, Mr. Uthoff testified that he had never heard of the name Pneumo Abex. (Parkins Decl., Exh. J at 508:7-13.) It is reasonable to infer from this testimony and the factually devoid discovery responses that Plaintiffs lack and cannot reasonably obtain evidence to support their contention that it owed a duty of disclosure. Accordingly, Plaintiffs fail to meet their burden on summary adjudication. The motion for summary adjudication to the cause of action for fraudulent concealment is granted.

IV.

Conclusion

Pneumo Abex meets its burden to prove that Plaintiffs lack and cannot reasonably obtain evidence to support their claims for false representation and fraudulent concealment. Plaintiffs fail to present evidence to support these causes of action. Accordingly, the motions for summary

adjudication are granted as to these causes of action.

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SUPERIOR COURT OF THE STATE OF
CALIFORNIA,çç

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14,ç

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STEPHEN M. UTHOFF and ANTOINETTE UTHOFF,ç

Plaintiffs,ç

v.ç

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ARKEMA, INC., et al.,ç

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Defendants.ç

Case No. 25STCV14589

ççççç

Hearing Date: July 17, 2026

Time:

9:00 a.m.

ç [TENTATIVE] ORDER

RE:ç

STERLING WANDER'S MOTION FOR SUMMARY

ADJUDICATION

I.

Background

On May 15, 2025, Plaintiffs Stephen and Antoinette Uthoff filed their complaint for personal injury alleging Mr. Uthoff developed mesothelioma from indirect occupational exposure to asbestos and asbestos containing products from his father's work as a mechanic from 1965 to 1968, direct non-occupational exposure from his work with automotive products from 1970 to 1983, direct occupational exposure from his own work as a mechanic in 1981 and 1982, and direct non-occupational exposure to asbestos containing home repair products from 1972 to 1983 and from his personal use of talc products between 1991 and 2020. As against Defendant Sterling Wander, LLLP ("Sterling Wander"), Plaintiffs allege Mr. Uthoff was exposed to asbestos-containing Bendix brand brakes manufactured by Sterling Wander's predecessor, the Bendix Corporation ("Bendix").

On May 11, 2026, Sterling Wander moved for summary adjudication of the cause of action for false representation, the cause of action for intentional tort/intentional failure to warn/concealment (hereinafter "fraudulent concealment"), and the demand for punitive damages on the grounds that Plaintiffs lack and cannot reasonably obtain evidence to support the fraud-based causes of action and the demand for punitive damages.

On June 26, 2026, Plaintiffs opposed, arguing that Sterling Wander failed to shift its burden on summary adjudication because Plaintiffs' evidence is sufficient to raise a triable issue as to the fraud-based causes of action and the demand for punitive damages.

On July 6, 2026, Sterling Wander replied, reiterating that Plaintiffs' discovery responses are devoid of facts supporting the causes of action for false representation and fraudulent concealment and the demand for punitive damages.

Sterling Wander meets its burden to prove that Plaintiffs lack and cannot reasonably obtain evidence to support their claims for false representation and fraudulent concealment. Plaintiffs

fail to present evidence to support these causes of action. Accordingly, the motions for summary adjudication are granted as to these causes of action.

Sterling Wander fails to meet its burden to prove that Plaintiffs lack and cannot reasonably obtain evidence to support their demand for punitive damages. The burden does not shift to Plaintiffs. Accordingly, the motion for summary adjudication of the demand for punitive damages is denied.

II.

Evidentiary Objections

Plaintiffs' Objections

Sustained

1-2. Plaintiffs object to Sterling Wander's Exhibits

J-U, which consist of scientific articles and reports used to support the contention that there is no consensus across the scientific and medical community that brake dust can cause mesothelioma. Sterling Wander argues that Dr. Irving J. Selikoff relied on these articles during an asbestos conference in the 1960s to conclude that brake linings do not constitute a hazard because they degrade with wear and become forsterite, an inert substance. (UMF Nos. 29-30, 32-38.) Sterling Wander further cites the findings in these documents to prove that there are no health hazards from exposure to brake dust. Plaintiffs argue that these documents are unauthenticated, constitute hearsay, and are irrelevant. The objections are sustained. No authentication evidence demonstrates that these documents are what Sterling Wander asserts they are. They are also hearsay because they are being offered to prove the truth of the matters stated in these reports.

Sterling Wander's Objections

Not

relied upon: Sterling Wander's objections to Exhibits

C-O. These exhibits were not material to the court's analysis pertaining to the fraud-based causes of action. The majority of these exhibits supported Plaintiffs' arguments pertaining to the demand for punitive damages. However, the court found Sterling Wander failed to meet its burden on summary adjudication as to punitive damages. The court need not reach Plaintiff's evidence supporting the demand for punitive damages.

III.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must “conclusively negate[] a necessary element of the plaintiff’s case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial.” (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (*Id.* at p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.’ ” (*Weber v. John Crane, Inc.* (2006) 143 Cal.App.4th 1433, 1440.)

B.

False Representation

i.

Legal Standard

False

representation under Restatement of Torts section 402B establishes “liability for injuries caused by justifiable reliance on false advertising.” (*Westlye v. Look Sports, Inc.* (1993) 17 Cal.App.4th 1715, 1750.) Under this section “ ‘[o]ne engaged in the business of selling chattels who, by advertising, labels, or otherwise, makes to the public a misrepresentation of a

material fact concerning the character or quality of a chattel sold by him is subject to liability for physical harm to a consumer of the chattel caused by justifiable reliance upon the misrepresentation, even though [¶] (a) it is not made fraudulently or negligently, and [¶] (b) the consumer has not bought the chattel from or entered into any contractual relation with the seller.'

[Citation.]" (Id. at pp. 1750-1751.) "The rule 'is one of strict liability for physical harm to the consumer, resulting from a misrepresentation of the character or quality of the chattel sold, even though the misrepresentation is an innocent one, and not made fraudulently or negligently.' [Citation.]" (Hauter v. Zogarts (1975) 14 Cal.3d 104, 114.) Under section 402-B, the "reliance need not necessarily be that of the consumer who is injured. It may be that of the ultimate purchaser of the chattel . . . who because of such reliance passes it on to the consumer who is in fact injured, but is ignorant of the misrepresentation.' [Citation.]" (Westlye, supra, 17 Cal.App.4th at p. 1751.)

ii.

Parties' Arguments

Sterling

Wander moves for summary adjudication of the cause of action for false representation on the grounds that Plaintiffs fail to provide evidence to prove that Sterling Wander made a misrepresentation to Mr. Uthoff or that Mr. Uthoff relied on any misrepresentations. (Motion at p.9 ["Plaintiffs fail to reference any misrepresentation directed at Mr. Uthoff by Sterling Wander and they fail to evidence or prove "actual reliance." "California courts have always required plaintiffs in actions for deceit to plead and prove the common law element of actual reliance."...Plaintiffs are required to prove "'a complete causal relationship' between the alleged misrepresentations and the harm claimed to have resulted therefrom."...They have not, and cannot, do so here."].)

In

opposition, Plaintiffs argue that Sterling Wander failed to shift its burden because its evidence shows that Sterling Wander manufactured and sold asbestos-containing products, knew of their hazards, and failed to disclose the hazardous ingredient to end users like Mr. Uthoff. (Opp. at p.7 ["Defendant Sterling Wander manufactured and sold asbestos-containing products, knew the hazards of asbestos, and refused to disclose the hazardous ingredient to end users like Mr. Uthoff, who as a result, was unknowingly exposed to asbestos.

There is sufficient evidence for a jury to reasonably conclude Sterling Wander falsely represented its product to Mr. Uthoff.”].)

In
reply, Sterling Wander reiterates arguments from its moving papers.

iii.
Analysis

Defendant’s Burden:
Factually Devoid

Sterling Wander meets its initial burden to prove that
Plaintiffs lack and cannot reasonably obtain evidence to support their cause of
action for false representation. Sterling Wander argues that Plaintiffs failed to proffer evidence to establish
that it made misrepresentations to Mr. Uthoff or that Mr. Uthoff relied on any
misrepresentation. When Sterling Wander asked Mr. Uthoff to “set forth all
facts supporting [Plaintiffs’] cause of action for False Representation,”
Plaintiffs responded by referring to their response to special interrogatory
number 1, which requested all facts supporting Plaintiffs’ contention that Mr.
Uthoff was exposed to asbestos by an asbestos-containing product supplied by
Sterling Wander. (Berberoglu Decl., Exh. C at p.10.) The response to
interrogatory number 1 states in relevant part:

“Plaintiff believes and therefore
alleges that he was exposed to asbestos from his use of Defendants’
asbestos-containing products from approximately 1965 through 1968 through the
automotive work of his father, ROGER UTHOFF; from approximately 1972 through
1983 through his own automotive work.

From his birth in 1965 until 1968, Plaintiff’s father ROGER
UTHOFF worked as a professional mechanic at a Signal Service Station in San
Pedro California, and as the owner of a Shell service station, on Pacific
Avenue in, San Pedro, California. He worked with brakes, which caused him to
get asbestos dust on his clothing, which he wore home, exposing Plaintiff.

In approximately 1968, ROGER UTHOFF became an officer of the
California Highway Patrol. However, he continued to work on his own, his
family’s, his friends’, and his neighbors’ cars, and taught Plaintiff how to
work on cars from an early age. When Plaintiff became a teenager, he was able

to work independently on cars.

From approximately August 1981 to October 1982, Plaintiff worked at Joe & Mike's automotive shop located at 2010 S. Pacific Avenue in San Pedro. His duties at the shop included assisting mechanics as they performed repairs as well as cleaning up the service bays and property at the end of the work day. The work that he assisted and cleaned up after included brake, gasket, and engine work.

A brake job included removing the existing brakes, and cleaning the drum of dust by banging on brake drums with a hammer to loosen caked on dust, and blowing air into the drums and the brake assembly. The new brake's friction material would be roughed up with sandpaper. Sanding the brake caused respirable dust, which he breathed. At commercial locations, the brakes' friction material would be ground with a brake grinder before installation and compressed air was used to blow out brake drums and brake assemblies. During and at the end of each work day at Joe & Mike's plaintiff was responsible for sweeping and disposing of all dust and debris that had accumulated during the work day including brake dust, debris and used parts. The use of the brake grinder, blowing brake dust, and cleaning up the resulting dust caused asbestos dust in the air, which he breathed.

...

Defendant had a duty to manufacture, distribute, sell and/or market products that were free from latent or other known or knowable defects prior to its products leaving its possession and control, or, alternatively, to clearly warn end users of the hazards of such products so that such end users and bystanders to such use could take proper precautions to make the use of such products safe. Despite its knowledge, defendant continued to manufacture, distribute, market, sell and/or supply its products known to release respirable asbestos-laden dust either when being installed, removed, cut, scraped, punched, ground, sanded, handled and otherwise disturbed before, during and after use or when the products deteriorated. These defects existed at the time Defendants' asbestos-containing products left its possession and control. Further, defendant failed to warn users of the health hazards of asbestos in its products, or to provide any instructions regarding safe use. As a result, Plaintiff used and otherwise disturbed Defendant's asbestos-containing products in the manner described above without any taking any precautionary measures. These exposures increased

Plaintiff's risk of contracting asbestosis. Defendant acted with malice, fraud and oppression, subjecting plaintiff and others like him, to cruel and unjust hardships in conscious disregard for their rights and safety. Despite its knowledge of the extraordinary health hazards associated with asbestos exposure from its products, defendant withheld safety information from end users and consumers and continued to manufacture, distribute, market, label, sell and/or supply such products, without warnings or proper handling instructions, for decades after such knowledge was first known by it...

...

Defendant was aware that its Bendix products contained asbestos and that asbestos could cause a fatal disease, and yet never issued a warning that use of its products could result in death. Further, Plaintiff believes Defendant only minimally complied with warning requirements mandated by OSHA in 1973 and 1986, despite its knowledge, prior to 1973, that asbestos could cause diseases, including the fatal lung cancer, mesothelioma. These facts have been confirmed within Defendant's verified responses to Standard Interrogatories."

(Berberoglu Decl., Exh. C at pp.2-5.)

Mr. Uthoff

testified at his deposition that Bendix had provided packaging and other materials to him, other mechanics, and auto shops. (Berberogly Decl., Exh. F at 454:25-455:10 ["Q: And have you ever had any communication with any employee, agent, or representative of Bendix other than myself? A: I would say that in terms of communications, you know, to the extent Bendix is, you know, providing packaging and – and giving stuff to people like myself and my father and mechanics and what have you, or the auto shop, you know, they're communicating with the public and they're selling their products, and they're you know, giving that information to the general public."].) Mr. Uthoff also testified that he had consulted parts books and instructions that may have been produced by Bendix. (Id. at 455:18-457:2 ["Q: Okay. Do you recall ever consulting any repair book, manual, or other literature that you believe was either authored or published by Bendix in performing any automotive work throughout your lifetime?...A: So besides the packaging that we spoke of, I do recall that, you know, there would be parts books, and then there would also be kind of DIY type...books that we would consult...from time to time, at least myself, trying to figure out how to do things. And the...parts books, to find a part...that

might be something that would be on a desk. So those could have been produced by Bendix..."].)

Plaintiffs'

discovery responses are devoid of facts supporting their cause of action for false representation. Plaintiffs' interrogatory responses state at most that Sterling Wander was aware of the hazards posed by Bendix's asbestos-containing products and failed to issue warnings about those products. (Berberoglu Decl., Exh. C at pp.2-5.) Although Mr. Uthoff testifies that he recalls reading Bendix packaging and other written materials that may have been produced by Bendix, neither the interrogatory responses nor Mr. Uthoff's deposition testimony state what misrepresentations Bendix made or whether Mr. Uthoff relied on these misrepresentations when he worked with Bendix products. Plaintiffs' discovery responses are therefore devoid of facts supporting the cause of action for false representation and support an inference that Plaintiffs lack and cannot reasonably obtain evidence to support this cause of action against Sterling Wander. Accordingly, Sterling Wander meets its burden on summary adjudication. The burden shifts to Plaintiffs.

Plaintiff's Burden

Plaintiffs fail to meet their burden on summary adjudication to present affirmative evidence to support their cause of action for fraudulent concealment. Plaintiffs present other excerpts of Mr. Uthoff's deposition. Mr. Uthoff provides details about his work with brakes and describes how the work created dust which he inhaled. (Seitz Decl., Exh. A at pp.35-46, 59-61, 409-412, 417-418, 436, 446, 449-452, 461, 466-467, Exh. B at pp.59-60, 73, 155, 160-161, 316-326, 345, 356.) Mr. Uthoff also describes roofing work he performed between 1975 and 1982. (Id. at pp.68-72, 541-570.) Mr. Uthoff also describes construction work he performed around 1972, 1981, and 1982. (Id. at pp.122, 127-137, 140-145, 196-198.) When asked whether he recalled seeing any writings, markings, or logos on Bendix brakes, Mr. Uthoff testified that he remembered the logo was stamped, engraved, or written on the brake lining and brake shoe. (Id. at 402:1-23.) Plaintiffs' remaining evidence is being used to support the fraudulent concealment cause of action and punitive damages. (PAMF No.40.)

Plaintiffs' evidence fails to establish that Sterling

Wander or its predecessor made misrepresentations about the safety of its Bendix brakes. Plaintiffs' evidence consists largely of background information

about Mr. Uthoff's alleged exposure through automotive repair work, roofing work, and construction work. (Seitz Decl., Exhs. A-B.) Although Mr. Uthoff recalls seeing markings on the brakes and brake shoes, there is no evidence that these markings or any other writing produced by Bendix contained misrepresentations about its products' safety as Plaintiffs allege in the complaint. Plaintiffs thus fail to present affirmative evidence that Bendix made misrepresentations to Mr. Uthoff about the safety of its products. Accordingly, Plaintiffs fail to meet their burden on summary adjudication. The motion for summary adjudication is granted as to the cause of action for false representation.

C.

Fraudulent Concealment

i.

Legal Standard

The elements

of a cause of action for fraudulent concealment or fraud by non-disclosure are: "(1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as they did if they had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage." (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311, citing Kaldenbach v. Mutual of Omaha Life Ins. Co. (2009) 178 Cal.App.4th 830, 850.)

Element two,

sometimes referred to as the special relationship requirement, means that there are four circumstances which can give rise to actionable fraud

by non-disclosure or concealment: " '(1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]' " (LiMandri v. Judkins (1997) 52

Cal.App.4th 326, 336.) In the absence of a fiduciary relationship between a plaintiff and a defendant, "As a matter of common sense, such a relationship can only come into being as a result of some sort of transaction between the

parties.” (Id. at p. 337.) Unlike products liability, where there is a “general principle that a manufacturer has a duty to warn consumers of a product’s hazards and faults,” a duty to disclose material facts arises in the fraud context “only where there is already a sufficient relationship or transaction between the parties.” (Bigler-Engler, supra, 7 Cal.App.5th at p.312.)

ii.

Parties’ Arguments

Sterling

Wander moves for summary adjudication of the cause of action for fraudulent concealment on the grounds that Plaintiffs lack and cannot reasonably obtain evidence that a direct transactional relationship existed between Mr. Uthoff and Sterling Wander giving rise to a duty to disclose. (Motion at pp.10-11 [“Plaintiffs did not have any transactional relationship with Sterling Wander. Thus, Sterling Wander owed no duty of disclosure to them.”].)

In

opposition, Plaintiffs fail to address the cause of action for fraudulent concealment.

iii.

Analysis

Defendant’s Burden:

Factually Devoid

Sterling

Wander meets its initial burden to prove that Plaintiffs lack and cannot reasonably obtain evidence to support their cause of action for fraudulent concealment. Sterling Wander argues that Plaintiffs lack and cannot reasonably obtain evidence that a transactional relationship existed giving rise to a duty to disclose. When Sterling Wander asked Plaintiffs to “set forth all facts supporting [Plaintiffs’] cause of action for Intentional Tort/Intentional Failure to Warn/Concealment,” Plaintiffs responded by referring to their response to interrogatory number 1, stated above. (Berberoglu Decl., Exh. C at p.10.) The responses at most state that Sterling Wander had “a duty to manufacture, distribute, sell and/or market products that were free from latent or other known or knowable defects prior to its products leaving its possession and

control, or, alternatively, to clearly warn end users of the hazards of such products so that such end users and bystanders to such use could take proper precautions to make the use of such products safe.” (Id. at p.4.) Plaintiffs fail to state the factual basis for their contention that Sterling Wander owed Mr. Uthoff a duty to disclose. The interrogatory responses are devoid of facts demonstrating that the requisite transactional relationship existed between Mr. Uthoff and Sterling Wander or Bendix giving rise to a duty to disclose. The responses therefore give rise to an inference that Plaintiffs lack and cannot reasonably obtain evidence to support this cause of action. Accordingly, Sterling Wander meets its burden on summary adjudication. The burden shifts to Plaintiffs.

Plaintiffs’ Burden

In opposition, Plaintiffs failed to address the cause of action for fraudulent concealment in their opposition memorandum. Plaintiffs presented additional excerpts of Mr. Uthoff’s deposition with the opposition. Mr. Uthoff testifies that while he was employed at an auto shop called Joe and Mike’s auto, he never purchased parts for the shop. (Seitz Decl., Exh. A at 397:19-399:2 [“Q: And if I hear you correctly, in terms of brands of replacement brakes, you recall Bendix, Atlas, and AC Delco brand of replacement brakes? A: Yes. Q: Okay. And with regard to the AC Delco brand of replacement brake shoes, you believe they came via the Buick dealership that Joe and Mike acquired, correct? A: I didn’t – that’s an assumption on my part. I mean I didn’t buy parts for them.”].) Additionally, the shop either had parts on hand or used various vendors. (Id. at 398:19-399:2 [“Q: Okay. And then with regard to Bendix brand brakes, do you know where—for the Bendix brakes that they either had on hand in—in their parts area or whatnot, do you know where they had purchased those from? A: I would say it’s the same answer as either, you know, they had them, you know, directly in our parts department or they used one of these other vendors.”].) When he worked for a Shell gas station, Mr. Uthoff recalls purchasing parts for the station from another vendor, McConnell Auto Parts. (Id., Exh. B at 73:3-9, 155:17-25 [“Q: Did you purchase parts from any other source aside from McConnell Auto Parts? A: That was the bulk of my purchases. If he did not have a part, I would go somewhere else to receive the purchase – or get the purchase, what I needed. But I don’t recall specifically any other parts house that I used.”].) When Mr. Uthoff bought brakes for his own vehicles, he bought them from Joe and Mike’s. (Id., Exh. A at 417:2-11.)

Mr. Uthoff's testimony supports an inference that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Uthoff had a transactional relationship with Sterling Wander or Bendix because Mr. Uthoff testified that he transacted with various vendors, not Bendix. Plaintiffs fail to meet their burden on summary adjudication. Accordingly, the motion for summary adjudication of the cause of action for fraudulent concealment is granted.

D.

Punitive Damages

i.

Legal Standard

When a motion for summary adjudication targets a request for punitive damages, a higher standard of proof is at play. "Although the clear and convincing evidentiary standard is a stringent one, 'it does not impose on a plaintiff the obligation to "prove" a case for punitive damages at summary judgment [or summary adjudication.]' [Citations.] Even so, 'where the plaintiff's ultimate burden of proof will be by clear and convincing evidence, the higher standard of proof must be taken into account in ruling on a motion for summary judgment or summary adjudication, since if a plaintiff is to prevail on a claim for punitive damages, it will be necessary that the evidence presented meet the higher evidentiary standard.' [Citation.]" (Butte Fire Cases (2018) 24 Cal.App.5th 1150, 1158-1159.) For a corporate defendant, the oppression, fraud or malice "must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code, § 3294, subd. (b).) That requirement can be satisfied " 'if the evidence permits a clear and convincing inference that within the corporate hierarchy authorized persons acted despicably in "willful and conscious disregard of the rights or safety of others." ' [Citation.]" (Morgan v. J-M Manufacturing Company, Inc. (2021) 60 Cal.App.5th 1078, 1090 ("Morgan").) A plaintiff also "can satisfy the 'managing agent' requirement 'through evidence showing the information in the possession of the corporation and the structure of management decision making that permits an inference that the information in fact moved upward to a point where corporate policy was formulated.' [Citation.]" (Id. at p. 1091.)

" '[I]ntentionally marketing a defective product

knowing that it might cause injury and death is 'highly reprehensible.'

[Citation.]" (Bankhead v. ArvinMeritor, Inc. (2012) 205

Cal.App.4th 68, 85.) Punitive damages may be available when a defendant

knows the dangers of asbestos, took action to protect its own

employees from the hazard, knew that its products were likely to pose a danger

to users, and did not warn them. (Pfeifer v. John Crane, Inc. (2013)

220 Cal.Ap.4th 1270, 1300.) Such evidence "was sufficient to show malice,

that is, despicable conduct coupled with conscious disregard for the safety of

others." (Id. at pp. 1300-1301.)

Managing

agents are employees who exercise substantial discretionary authority over

decisions that ultimately determine corporate policy. (Cruz v. HomeBase

(2000) 83 Cal.App.4th 160, 167.) Managing agents include only those corporate

employees who exercise substantial independent authority and judgment. (White

v. Ultramar, Inc. (1999) 21 Cal.4th 563, 567.) Whether an employee is a managing agent is a question of fact for

decision on case-by-case basis. (Id.)

ii.

Parties' Arguments

Sterling

Wander moves for summary adjudication of the demand for punitive damages arguing

that Plaintiffs lack and cannot reasonably obtain evidence that a Sterling

Wander officer, director, or managing agent engaged in malice, oppression, or

fraud. (Motion at p. 4.) Specifically, Sterling Wander argues that Plaintiffs'

interrogatory responses refer to an unauthenticated letter from a deceased

Sterling Wander employee, E.A. Martin, which is inadmissible and cannot create

a triable issue of material fact on punitive damages. (Id. at p.14 ["The

E.A. Martin letter is hearsay, inadmissible as a matter of law, and thus cannot

create a triable issue of material fact on punitive damages. Admitting the E.A.

Martin letter would invite the jury to punish Defendant for Mr. Martin's

purported conduct in writing the letter, instead of punishing for the conduct

that allegedly injured Mr. Uthoff. Even if it's somehow admissible and taken at

face value, the letter is nothing more than a sarcastic expression of

confidence in a product ingredient by a corporate employee who was not an

officer, director or managing agent of Defendant. It cannot be imputed to

Sterling Wander."].) Sterling Wander further argues that punitive damages

should not be allowed when there is a lack of consensus in the scientific

community on whether asbestos-containing brakes can cause mesothelioma. (Motion

at pp.17-18 [“Due to this uncertainty in the scientific literature, a failure to warn, could not be malicious and, therefore, there was no substantial evidence to support a finding, by clear and convincing evidence, of despicable conduct carried out with a willful and conscious disregard of the safety of others.”].)

In

opposition, Plaintiffs argue they presented evidence that “Defendant was aware of the hazards of asbestos at the time of Mr. Uthoff’s exposure to its products, but it failed to adequately warn him and others of those hazards. The evidence shows that, as of 1966, Bendix maintained a file on the subject of asbestos health hazards with publications dating back as early as the 1940s demonstrating that asbestos was hazardous.” (Opp. at pp.9-10.)

In

reply, Sterling Wander reiterates arguments from its moving papers.

iii.

Analysis

Defendant’s

Burden: Factually Devoid

In addition to the responses set forth above, Plaintiffs’ responses to special interrogatories state the following to support their demand for punitive damages:

“In 1966, Bendix’s Director of Purchasing, E.A. Martin, wrote to Noel Hendry of Canadian Johns-Manville, Bendix’s supplier of raw asbestos fibers, discussing a matter of mutual interest to the business of both Johns-Manville and Bendix—that is, the subject of asbestos and whether it was dangerous to consumers. On September 29, 1966, Mr. Hendry acknowledged receipt of the letter by responding to it with a return letter to Mr. Martin. In addition, on October 16, 1966, Martin wrote an internal memorandum to four other Bendix employees on the identical subject. In this internal Bendix memorandum, Mr. Martin: (1) acknowledges that pre-eminent asbestos-disease researcher Dr. Irving Selikoff had published a report linking lung cancer to asbestos; (2) adopts an oppositional attitude toward Selikoff’s so-called “stigmatic” report because of the “fear” it would generate; and (3) makes it clear that, in 1966, the Purchasing Department was maintaining a file on the

issue of asbestos hazards, including a Canadian Health Department report of May 30, 1949.

Joel

Cohen, Honeywell's current corporate representative, was deposed in the matter of Silas J. Minton, Jr., et al., v. BorgWarner Morse TEC Inc., et al. (Los Angeles County Superior Court Case No. BC494411). He confirmed that E.A. Martin was Bendix's Director of Purchases at its Troy, New York facility, and was in charge of procurement of materials, goods, services, and supplies used in connection with maintenance, repairs, operations, and manufacturing at that facility (Deposition of Joel Michael Cohen, at pp. 87:21-88:8). He further testified that the recipients as named on E.A. Martin's October 1966 memo included: (1) the general manager of Bendix's Friction Materials Division located in Troy, New York; (2) the safety supervisor at Bendix; and (3) the head of personnel for Bendix's Friction Materials Division (pp. 125:20-127:9). Mr. Cohen also testified that the memo was found in the "Asbestos Medical Report" file (pp. 119:11-121:7). Finally, Mr. Cohen confirmed that Mr. Martin kept multiple newspaper articles dating to 1964 and 1966 and a May 1949 report from Johns-Manville, all on the subject of asbestos health risks, in the "Asbestos Medical Report" file (pp. 129:1-139:19).

Honeywell

was further made aware of these issues through field visit reports provided by the Ontario Department of Health (Environmental Hygiene/Health branch), including, but not limited to, those dated April 14, 1966 and March 10, 1970, concerning its Bendix-Eclipse plant located in Windsor, Ontario.

In the 4/14/66 plant visit report, it was noted that the exhaust systems for the drilling and grinding of the brake assemblies included a dust collection bag that when shaken by hand, 'considerable dust escapes from the collector and tends to settle on hoppers and other equipment in the room.' The author of the report, H.M. Nelson, directed that the collector bags in the brake lining shop only be shaken when the maintenance operator was present, at that the operator wear a suitable approved respirator when shaking the collection bags. Nelson further recommended in the report that operators working with asbestos 'be placed under medical supervision.

As

far as the 3/10/70 report, it was noted that on the day of the visit to the Bendix plant, 'clouds of dust drifted around the yard, some of it re-entering the plant,' despite the fact 'the air was relatively calm' that day. The author

of this report, H.M. Nelson, recommended that any individual cleaning the bags that collected dust 'must wear an approved respirator,' and that the residual material in these dust collector bags must be disposed of in a way that does not involve disseminating dust into the air. Yet despite these directions from the Ontario Dept. of Health, Defendant Honeywell did not recommend use of a respirator or to avoid dust in the air to the consumers, users, etc. of its Bendix brakes as of 1970.

Despite

Defendant's prior knowledge regarding the hazards of asbestos, Defendant did not warn consumers of the hazards of the asbestos in its brake products until 1973, when it was forced to do so by OSHA regulations. The 1973 warning said nothing to alert users that exposure to asbestos could cause cancer or death. In 1986, Bendix modified its warning to refer to cancer, but still said nothing about the risk of death."

(Berberoglu Decl., Exh. C at pp.6-7.)

The facts of this

case are similar to those in *Pfeifer v. John Crane, Inc.* (2013) 220 Cal.App.4th 1270, 1300 ("Pfeifer"). There, evidence was sufficient to establish by clear and convincing evidence that a manufacturer of gaskets, JCI, knew that asbestos was hazardous by the 1970s when the Occupational Safety and Health Administration ("OSAH") promulgated regulations requiring manufacturers of asbestos-based products to monitor concentrations of asbestos fibers in the air in its factories. (Pfeifer, supra, 220 Cal.App.4th at p.1300.) JCI also prepared safety data sheets for its sheet gaskets warning its employees that exposure to asbestos could cause asbestosis and cancer. (Id.) OSHA regulations also required manufacturers to place warning labels on products unless the fibers had been modified by a bonding agent that limited the asbestos released during foreseeable use of the gaskets. (Id.) JCI knew asbestos dust was released when its users replaced fragmented old gaskets and never tested the products to determine whether the asbestos released generated asbestos concentrations exceeding regulatory limits. (Id.) Additionally, JCI knew products did not fully encapsulate the asbestos fibers and that removal methods resulted in concentrations of asbestos fibers that greatly exceeded ordinary background levels. (Id.) The evidence supported a finding that JCI acted with a conscious disregard for the safety of others because it understood that asbestos dust endangered workers and continued to sell a product that generated considerable asbestos dust without warnings. (Id.)

at pp.1300-1301.)

Sterling

Wander fails to meet its burden to show that Plaintiffs lack and cannot reasonably obtain evidence to support their demand for punitive damages. Plaintiffs' interrogatory responses contain specific facts demonstrating that a Director of Purchasing, E.A. Martin, began monitoring reports on asbestos exposure in 1966. (Berberoglu Decl., Exh. C at pp.6-7.) Sterling Wander thereafter received field visit reports from the Ontario Department of Health directing it to implement safety measures to protect employees working with asbestos and to prevent asbestos dust from disseminating into the air. (Id.) It is reasonable to infer from these facts that Sterling Wander was aware of the health risks posed by exposure to asbestos dust and that safety measures were required to protect workers handling asbestos directly from asbestos exposure. Like in Pfeifer, evidence that Sterling Wander was subject to regulations requiring it to limit asbestos dust in its factories and implement safety measures to protect employees supports an inference that Sterling Wander understood that asbestos dust endangered those working with asbestos and near asbestos dust. Likewise, the evidence supports an inference that Sterling Wander knew others working with its asbestos-containing products, such as end users removing and installing asbestos-containing brakes, would be exposed to the same risks as its employees when their work produced asbestos dust. Plaintiffs' discovery responses thus contain sufficient facts supporting the demand for punitive damages.

Sterling Wander argues that Plaintiffs

fail to provide evidence that Mr. Martin is a managing agent. However, Plaintiffs' interrogatory responses state that Mr. Martin was a Director of Purchases at a facility in New York and managed the goods, services, materials, and supplies used at that facility. (Berberoglu Decl., Exh. C at p.6.) His memo on the health risks of asbestos exposure were transmitted to "(1) the general manager of Bendix's Friction Materials Division located in Troy, New York; (2) the safety supervisor at Bendix; and (3) the head of personnel for Bendix's Friction Materials Division." (Id.) These facts support an inference that Mr. Martin was a managing agent with substantial discretionary authority over decisions that ultimately determined Bendix's corporate policy because Mr. Martin was responsible for the materials Bendix used and gave his opinions on the health risks of asbestos to managers, division heads, and supervisors at Bendix. It is reasonable to infer from these facts that Mr. Martin had discretionary authority over Bendix's use of asbestos. Even if he

was not a managing agent, the fact that Sterling Wander received directions from government authorities to provide safety measures to protect plant workers from asbestos further supports an inference that some director, officer, or managing agent of Bendix knew of the health risks posed by asbestos exposure. Plaintiff's argument that Mr. Martin is not a managing agent is without merit.

Sterling Wander also disputes the admissibility of the letter by Mr. Martin referenced in Plaintiffs' interrogatory responses. However, the evidence at issue here is not Mr. Martin's letter but Plaintiffs' discovery responses referencing the letter. The responses point to specific facts that would support the demand for punitive damages. Even if the letter itself were inadmissible, Plaintiffs' factually sufficient interrogatory responses support an inference that Plaintiffs may discover evidence to support the demand for punitive damages.

As for Sterling Wander's argument that there is no scientific consensus that brake dust causes mesothelioma, Sterling Wander's counsel makes this assertion in the moving papers without support. The court sustained Plaintiffs' objections to the scientific articles and reports Sterling Wander submitted to support this argument. Accordingly, this argument is without merit.

Sterling Wander fails to meet its burden on summary adjudication. Accordingly, summary adjudication of the demand for punitive damages is denied.

IV.

Conclusion

Sterling Wander meets its burden to prove that Plaintiffs lack and cannot reasonably obtain evidence to support their claims for false representation and fraudulent concealment. Plaintiffs fail to present evidence to support these causes of action. Accordingly, the motions for summary adjudication are granted as to these causes of action.

Sterling Wander fails to meet its burden to prove that Plaintiffs lack and cannot reasonably obtain evidence to support their demand for punitive damages. The burden does not shift to Plaintiffs. Accordingly, the motion for summary adjudication of the demand for punitive damages is denied.